

25LBCV02230 25LBCV02230

County: los-angeles

Division: Civil Law and Motion

Department: S28

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Case Number: 25LBCV02230 Hearing Date: July 30, 2026 Dept: S28

BACKGROUND

On August

7, 2025, Plaintiff Jane Doe as Successor in Interest to Jeffrey Curtis Adams, Jr. (decedent) ("Plaintiff") commenced this action against Defendants Guido Hoermann, Daniel Gilboa, Aquariums, Inc., and Jenasere Properties LLC ("Defendants") alleging negligence and negligence per se.

On

April 17, 2026, Plaintiff filed a notice of death.

On April

24, 2026, Plaintiff filed the instant Motion to substitute Rineson Curtis Adams as successor in interest to Jeffrey Curtis Adams, Jr.

As of July 27, 2026, Defendants have not filed opposition.

DISCUSSION

Applicable

Law

"A pending action or proceeding does not abate by the death of a party if the cause of action survives." (Code Civ. Proc., § 377.21.) "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if

none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.) A certified copy of the decedent's death certificate must also be attached to the affidavit or declaration. (Id., § 377.32(c).)

Code of Civil Procedure section 377.32 provides that a person who seeks to commence such an action as the decedent's successor in interest must file an affidavit or declaration providing the following:

1.

The decedent's name

2.

The date and place of the decedent's death

3.

"No proceeding is now pending in California for administration of the decedent's estate"

4.

If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest

5.

Either of the following, as appropriate, with facts in support thereof:

i.

"The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"

ii.

"The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"

iii.

"No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"

6.

"The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct"

(Code Civ. Proc., § 377.32(a).)

" 'Decedent's successor in interest' means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)

Analysis

Plaintiff argues that pursuant to Civil Procedure § 377.31, Rineson Curtis Adams, as the successor in interest, has the right to the survival action here and should be named as the Plaintiff in this action, as the proper legal entity, so this matter can proceed forward. Jeffrey Curtis Adams, Jr. passed away on November 20, 2024. (See Exhibit 1). This action was filed on August 7, 2025, with "JANE DOE" acting as Mr. Adams's successor in interest. Plaintiff now seeks to substitute Mr. Adams's brother Rineson Curtis Adams. (See Declaration of Gladys Gonzalez ¶ C and Chrystalynn Adams ¶ 5). Chrystalynn Adams, decedent's aunt, declares that no estate has been set up for Mr. Adams, Jr. and there are currently no plans to set up an estate in the future for Mr. Adams, Jr. (See Declaration of Chrystalynn Adams ¶ 3). Chrystalynn Adams declares that the successor in interest under CA Probate Code 6402 would be the Decedent's brother, Rineson Curtis Adams and/or the Decedent's half brother Jamal Adams.

Here, the Court has examined the filings and finds that Chrystalynn Adams, decedent's aunt, has submitted a declaration that sets forth the required affirmations under Code of Civil Procedure section 377.32, subdivision (a). Investigator Gladys Gonzalez of Gladiator Inquiry Group has also submitted a certified copy of the

Plaintiff's death certificate.

(Declaration of Gonzalez, Exh. 1.) Plaintiff has thus complied with
section 377.32

CONCLUSION

Plaintiff Jeffrey Curtis Adams, Jr.'s Motion
to Substitute Rineson
Curtis Adams as Successor in
Interest is GRANTED.

Moving party to give notice.